IMPORTANT INFORMATION & INDEX OF CONTENTS

Bobcat Trail Homeowners Association, Inc. Annual Members' Meeting

Date: Monday, March 13, 2023
Time: 6:00PM
Location: Bobcat Trail Community Center,
1352 Bobcat Trail, North Port, Florida 34288

ALL OWNERS:

Please find enclosed the following:

- *This page* – Important Information & Index of Contents
- Second Notice of Annual Members' Meeting [1 page]
- Homeowner Letter [2 pages]
- Agenda [1 page]
- Limited Proxy Form [1 page]
- Voter Certificate [1 page]
- Postage Paid Return Envelope

If you have any questions, please contact Rafael Susara or Margaret Kotlas at 941.493.0287 or email at rsusara@amiwra.com.

➢ SECOND NOTICE ➣

Of

Annual Meeting of Members and Board Election

Of

BOBCAT TRAIL HOMEOWNERS ASSOCIATION, INC.

In accordance with the By-Laws of the Association and §720 of the Florida Statutes, the ANNUAL MEMBERS MEETING AND BOARD ELECTION will be held at the following date and time.

MONDAY, MARCH 13, 2023
6:00 PM

At the Bobcat Trail Community Center,
1352 Bobcat Trail, North Port, Florida 34288

Dated this 10th day of February, 2023

AMI ADVANCED MANAGEMENT, INC.
OF SOUTHWEST FLORIDA

The Plantation Office
899 Woodbridge Drive
Venice, Florida 34293

www.amiwra.com

Telephone: (941) 493-0287
Fax: (941) 493-4290
E-mail: Venice@amiwra.com

February 10, 2023

Dear Members of Bobcat Trail Homeowners Association:

On **Monday, March 13, 2023 at 6:00 p.m.** at the Bobcat Trail Community Center, 1352 Bobcat Trail, North Port, Florida 34288, the Bobcat Trail Homeowner's Association, Inc. Annual Meeting will take place for the purpose of announcing the names of newly elected Directors and to conduct such other business as may properly come before the members.

The procedure for the election of Directors is outlined in the Homeowner Association provisions of §720 of the Florida Statutes.

The procedure we will follow is listed below:

- The terms of Directors Marge Alden, Douglas Knowles, and Stephen Kohl will expire at the 2023 Annual Meeting. The terms of Tammy Holmes, Catherine Little, Michael San Antonio, and Brent Tawes will expire in 2024. The Board had previously passed a motion to allow for up to seven members on the Board. Therefore, up to three (3) Directors are sought to be elected.

- However, no election need be held at the 2023 Annual Members' Meeting because there are three (3) volunteers who came forward to be candidates for the available Director positions. Therefore, the candidates, **James P Callahan, Douglas Knowles, and Stephen Kohl** are automatically elected for two year terms.

- Enclosed is a Meeting Agenda, a Limited Proxy form and a Voting Certificate to be completed, if necessary, and any other meeting materials. The Limited Proxy is used, and **MUST** be completed and returned using the enclosed envelope to help establish a quorum for the meeting. **No business may be conducted at the meeting without first establishing a quorum.** The Limited Proxy must be signed by all owners or the designated voter on the Voting Certificate.

- The Voting Certificate is used to designate the individual person to vote for the lot/home. If there are multiple owners and you wish to designate an individual voter, this form must be completed. If your lot/home is owned by more than one person, even if that is a husband and wife, all owners must sign the enclosed Voting Certificate and the designated voter (one of the owners, **not a third person)** must sign the Proxy. When the lot/home is owned by a corporation, the Voting Certificate is to be signed by the President or Vice President and attested by the Secretary or Assistant Secretary.

- **If you have recently consented to electronic voting, the above meeting material has been emailed to you and instructions on how to set up your secured account will follow. You will be able to vote on the 2023 Carryover using the electronic platform and there will be no need for you to physically mail back your proxy.**

AMI

LIMITED PROXY FORM

Enclosed for your review and use is a "Limited Proxy Form" which we need to have you return at your earliest convenience, and definitely must be received in our office prior to the **March 13, 2023** Annual Meeting. **The Proxy not only establishes a quorum for the meeting, but also indicates your vote on the following item:**

- CARRYOVER: The Limited Proxy Form includes a provision for your vote to approve any 2023 carryover to offset assessments for the subsequent year. This vote is necessary to avoid paying corporate income tax on any surplus for 2023. The Board recommends you vote FOR the carryover.

A quorum of the Association members must be present by proxy, in order for the business to be conducted. It is therefore **VERY IMPORTANT** that you **provide a signed proxy prior to the time of the meeting to ensure a quorum can be attained and help facilitate a smooth quorum confirmation and vote tally process.** Please send your proxy to Advanced Management, Inc. at your earliest convenience.

Again, if you have previously consented to electronic voting, your on-line vote will serve as your proxy and there will be no need for you to physically mail back your proxy.
Thank you in advance for your anticipated cooperation.

Sincerely,
ADVANCED MANAGEMENT OF SOUTHWEST FLORIDA, INC.
As Acting Agent for Bobcat Trail Homeowners Association, Inc.

Rafael Susara
Licensed Community Association Manager

Enclosures; Meeting Notice, Meeting Agenda, Proxy, Voter Certificate, Return Envelope

P.S. A copy of the Financial Report Review for year ending December 2022 will be available by March 31, 2023 at no charge to each owner by contacting AMI at 941.493.0287 or written request to 899 Woodbridge Drive, Venice, Florida 34293.

BOBCAT TRAIL HOMEOWNERS ASSOCIATION, INC.
ANNUAL MEETING OF MEMBERS

DATE: March 13, 2023
TIME: 6:00 p.m.
PLACE: Bobcat Trail Community Center
1352 Bobcat Trail
North Port, Florida 34288

The **AGENDA** for the meeting shall be as follows:

I. Annual Meeting of Owners
- A. Calling meeting to order
- B. Appointment of Recording Secretary
- C. Determining a quorum
  - ➢ Report those present by proxy
- D. Proof of mailing of notice of Annual Meeting
  - ➢ Affidavit of mailing
- E. Minutes of March 14, 2022 Annual Meeting
  - ➢ Either read or motion to approve without reading
- F. Reports
  - ➢ President's Report
  - ➢ Financial Report
  - ➢ Manager's Report
- G. Old Business
- H. New Business
  - ➢ Announce Directors
  - ➢ Announce Results of Carryover Vote
- I. Unit Owners' Comments
- J. Adjournment

Organizational Meeting of the Board Immediately Following the Members' Meeting

1. Call the Meeting to Order
2. Confirm That A Quorum Is Present and Proper Notice Given
3. Approve the Minutes from the March 14, 2022 Annual Board Meeting
4. New Business
   A. Elect Slate of Officers
5. Old Business
6. Adjournment

LIMITED PROXY FORM

KNOW ALL MEN BY THESE PRESENTS:

The undersigned owners, or their voting representative, of home _____ in **BOBCAT TRAIL HOMEOWNERS ASSOCIATION, INC.** hereby appoint the secretary of the association, his designee, or _____, as my proxy holder to attend the Annual Meeting of BOBCAT TRAIL HOMEOWNERS' ASSOCIATION, INC. to be held on **Monday, March 13th, 2023** at the Bobcat Trail Community Center, 1352 Bobcat Trail, North Port, Florida 34288. The proxy holder named above has the authority, with powers of substitution, to act in the name and place of the undersigned, to appear, represent, and vote for the undersigned to the same extent that the undersigned would if personally present, except as the proxy holder's authority is limited as indicated below:

General Powers
I hereby authorize and instruct my proxy to use his best judgment on all matters which properly come before the meeting as may be authorized by Section §720.306(8), Florida Statutes.

Limited Powers
I specifically authorize and instruct my proxy holder to cast my vote in reference to the following matters as indicated below:

1. **CARRYOVER:** Any excess of Membership Income over Membership Expenses for the year ending December 31, 2023 as defined in IRC Sec. 277 shall be applied against the subsequent tax year member's assessments, as provided by IRS Revenue Ruling 70-604. (If not carried forward, the excess would be subject to Corporate Income Tax.)

   ☐ For the carryover ☐ Against the carryover

The undersigned ratify and confirm any and all acts and things that the proxy may do or cause to be done in the premises, whether at the meeting referred to above or at any change, adjournment, or continuation of it, and revoke all prior proxies previously executed.

Dated: _____

_____ _____
Print Name Signature

_____ _____
Print Name Signature

SUBSTITUTION OF PROXY

The undersigned, appointed as proxy above, does hereby designate _____ to substitute for me in the proxy set forth above.

Dated: _____, _____. _____
Proxy

(In no event shall this proxy be valid for a period longer than 90 days after the date of the first meeting for which it was given.)

BOBCAT TRAIL

HOMEOWNERS ASSOCIATION, INC.

A Corporation Not-for-Profit

VOTING CERTIFICATE

TO: Association Secretary
c/o Advanced Management of Southwest Florida, Inc.
899 Woodbridge Drive
Venice, Florida 34293

KNOW ALL MEN BY THESE PRESENTS, that the undersigned are all of the record owners of Bobcat Trail Homeowners Association, Inc., shown below, and hereby constitutes, appoints and designates **(ONE OF THE OWNERS)** _____ as the voting representative for the lot/home owned by said undersigned pursuant to the By-Laws of the Association.

The afore named voting representative is hereby authorized and empowered to act in the capacity herein set forth until such time as the undersigned otherwise modifies or revokes the authority set forth in this voting certificate.

DATED this _____day of _____, 20_____.

_____ _____
Print Name Owner's Signature

_____ _____
Print Name Owner's Signature

Lot Number _____ _____
Address

_____

NOTE: **This form is not a proxy and should not be used as such. Please be sure to designate *a joint owner of the unit as the Voting Representative, a third party is not permitted.*** IT IS NOT NECESSARY TO COMPLETE THIS FORM IF ONE HAS BEEN FILED AND THE DESIGNATED VOTER REMAINS THE SAME.